

		15, 23); [3] Defendant Azalea’s breach of the Receivable Sale Agreements by failing to make the weekly remittance payments due thereunder, and by failing to pay the entire amount due despite Plaintiff’s demand (Smalbach Decl. at ¶¶ 9-10, 17-18, 25-26); [4] Plaintiff’s resulting damages, including: \$186,331.94 due under the December agreement; \$93,205.37 due under the March agreement; and, \$369,357.04 due under the April agreement (Smalbach Decl. at ¶¶ 11, 19, 27, Exhs. 2, 4, 6.) Based on the undisputed material facts, Plaintiff has met its initial burden of showing that it is entitled to judgment in its favor on the third, fourth, and fifth causes of action for breach of contract against Defendant Azalea. The burden shifts to Defendants to show that a triable issue of material fact exists. By failing to oppose the motion, Defendants have not met this burden. <u>Breach of Guaranty Against Defendant Azar (6th, 7th, and 8th COA)</u> “A lender is entitled to judgment on a breach of guaranty claim based upon undisputed evidence that (1) there is a valid guaranty, (2) the borrower has defaulted, and (3) the guarantor failed to perform under the guaranty.” (<i>Gray1 CPB, LLC v. Kolokotronis</i> (2011) 202 Cal.App.4th 480, 486, internal citation omitted.) Here, the undisputed material facts establish: [1] The existence of three personal guaranty agreements executed by Defendant Azar, in favor of Plaintiff, in connection with each of the subject Receivable Sale Agreements (Smalbach Decl. at ¶¶ 5, 13, 21, Exhs. 1, 3, 5); [2] The default of Defendant Azalea under the Receivable Sale Agreements. (Smalbach Decl. at ¶¶ 9-10, 17-18, 25-26); [3] Defendant Azar’s failure to perform under the accompanying guaranty agreements despite Plaintiff’s demand (Smalbach Decl. at ¶ 29); [4] Plaintiff’s resulting damages, including: \$186,331.94 due under the December agreement; \$93,205.37 due under the March agreement; and, \$369,357.04 due under the April agreement (Smalbach Decl. at ¶¶ 11, 19, 27, Exhs. 2, 4, 6.) Based on the undisputed material facts, Plaintiff has met its initial burden of showing that it is entitled to judgment in its favor on the fifth, sixth, and seventh causes of action for breach of guaranty against Defendant Azar. The burden shifts to Defendant to show that a triable issue of material fact exists. By failing to oppose the motion, Defendant has not met this burden. Additionally, in the alternative, the Court exercises its discretion to grant the motion because Plaintiff has met its initial prima facie showing, and Defendants did not submit an opposing separate statement. (Code Civ. Proc. § 437c, subd. (b)(3).) For the foregoing reasons, the motion for summary judgment is granted. Plaintiff shall submit a proposed judgment to the Court within 10 days and serve it upon all parties. The Case Management Conference scheduled for 07/27/26 is vacated. Plaintiff shall give notice of the ruling.
103	2024-01401794	Motion for Determination of Good Faith Settlement

Field vs. Gunvalson	The motion of defendant Allianz Life Insurance Company of North America (“Allianz”) for a good faith settlement determination under Code of Civil Procedure section 877.6 for its settlement with plaintiff Diane Field is granted. Legal Standard Code of Civil Procedure section 877.6 applies to a settlement between a plaintiff and an alleged tortfeasor or obligor under a contract in an action in which the tortfeasor is an alleged joint tortfeasor with another or the obligor is a co-obligor under the same contract with another. Cal. Code Civ. Proc. § 877.6(a)(1). Section 877.6 allows a settling defendant to obtain a determination that his settlement is in good faith, and thus to bar action for equitable contribution or equitable indemnity by the joint tortfeasor(s) or co-obligor(s). Code Civ. Proc. § 877.6(c). The California Supreme Court in <i>Tech-Bilt v. Woodward-Clyde & Assoc.</i> (1985) 38 Cal.3d 488, set forth the factors to determine good faith. The factors are: (1) a rough approximation of plaintiffs’ total recovery and the settlor’s proportionate liability; (2) the amount paid in settlement; (3) the allocation of settlement proceeds among plaintiffs; (4) the recognition that a settlor should pay less in settlement than he would if he were found liable after a trial; (5) the financial conditions and insurance policy limits of settling defendants; (6) the existence of collusion, fraud or tortious conduct aimed to injure the interests of nonsettling defendants. <i>Tech-Bilt</i>, 38 Cal. 3d at 499-500. The settlement must be assessed based on the information available at the time of settlement. <i>Tech-Bilt, Inc. v. Woodward-Clyde & Assoc.</i>, 38 Cal.3d at 499. Under the statute, the burden of proof is on the party opposing the good faith determination. Cal. Code Civ. Proc. § 877.6(d). Thus, where the nonsettling defendants do not oppose a motion for good faith settlement determination on the good faith issue, “a barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient.” <i>City of Grand Terrace v. Superior Court</i> (1987) 192 Cal. App. 3d 1251, 1261. In other words, only when the application is contested or motion for good faith determination is opposed need the court consider and weigh the <i>Tech-Bilt</i> standards. <i>Id.</i> Discussion Here, Allianz has provided no information as to the amount of damages claimed by Plaintiff or her likely recovery. Allianz has explained, however, that any damages suffered by Plaintiff were not the result of Allianz’s actions. Plaintiff did not lose any money on, or because of, the Allianz products she purchased. To the extent she was unhappy with those products or felt they did not fit her needs, that has been resolved by the settlement in which she surrendered each of the annuities that she purchased from Allianz Life and has received the full surrender value of those Annuities. [Geller Decl. (ROA #200), ¶ 9 and Ex. A.] Plaintiff has now received everything that she paid into the annuities, plus the Annuities’ earnings, less the amount of the withdrawals that she had taken previously. There is no evidence of collusion regarding the settlement and no party has opposed the motion for good faith settlement determination. Accordingly, the motion is granted. Moving party is ordered to give notice.
----------------------------	--